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TENANT OCCUPIED PROPERTY ADDENDUM
(With RPA when selling tenant occupied properties OR with RIPA when requesting occupied units be vacant)
(C.A.R. Form TOPA, Revised 6/24)

This is an addendum to the Purchase Agreement, OR ☐ Counter Offer No. _____, ☐ Other _____, ("Agreement"), dated 06/15/2026, on property known as 433 East Highway 4, Murphys, CA 95247 ("Property"), between Elizabeth Tara Dawson ("Buyer"), and James R Heryford, Yvonne Heryford ("Seller").

Buyer and Seller are referred to as the "Parties." For the purpose of this Tenant Occupied Property Addendum, **Tenant shall mean any adult person, other than Seller, who is occupying the Property, whether or not that occupant is paying rent.**

1. A. TENANT(S) TO REMAIN IN POSSESSION: Buyer shall take Property subject to the rights of existing Tenant(s), and under the terms and conditions specified in **paragraph 2.**

OR B. ☐ PROPERTY TO BE DELIVERED VACANT:

- (1) The Property (or Unit(s) _____) shall be delivered vacant, without existing Tenant(s).
- (2) If Seller, after exercise of good faith attempts and subject to applicable Law, is unable to remove existing Tenant(s) by Close Of Escrow (or ☐ 5 Days prior to COE): **(i)** Buyer may cancel this Agreement and Buyer's sole remedy shall be return of deposit(s) and Buyer's reasonable out-of-pocket expenses for inspection reports and appraisal fees under the Agreement, ☐ which total amount shall be no more than \$ _____; or **(ii)** Buyer may elect to proceed with the transaction with the Tenant(s) in possession and in doing so, Buyer will be waiving any claim for other damages or compensation arising out of the Tenant(s) remaining in possession.
- (3) If Seller is able to remove existing tenants prior to Close of Escrow, Seller, as applicable, shall disclose to Buyer: **(i)** when the Property became vacant; **(ii)** whether the tenant vacated voluntarily, and if so, whether Seller paid the tenant to leave; **(iii)** whether Seller filed a lawsuit (unlawful detainer) to attempt to evict the Tenant, and if so, whether the lawsuit ended in a judgment.
- (4) Seller, within **5 (or _____) Days** prior to Close Of Escrow, shall Deliver to Buyer the names of all adult occupants residing in the Property (other than Seller) that are known to Seller OR ☐ the following are the names of all adult occupants (other than Seller) that are known to Seller: _____.
- (5) Even if, pursuant to the Agreement, Seller remains in possession after Close of Escrow, no Tenant(s) shall remain, except: _____.

OR C. ☐ BUYER IS A TENANT IN PROPERTY

- (1) Buyer occupies the Property (or Unit(s) _____). **Paragraph 2** of this TOPA form shall not apply for the Property (or Unit(s)) occupied by Buyer.
- (2) **Security Deposit:**
 - (A) Seller shall transfer to Buyer, through escrow, **(i)** all unused Tenant(s) deposits, if any, and **(ii)** all prepaid but unearned rents, if any, prorated as of Close Of Escrow.
 - OR (B) _____.
- (3) For any units not occupied by Buyer, all other terms of this TOPA shall apply.

2. TENANT REMAINING IN POSSESSION ADDITIONAL TERMS:

- A. Tenant Deposits and Unearned Rent:** Seller shall transfer to Buyer, through escrow, **(i)** all unused Tenant(s) deposits, if any, and **(ii)** all prepaid but unearned rents, if any, prorated as of Close Of Escrow. Seller shall disclose to Buyer any Tenant delinquencies. ☐ Seller shall credit Buyer for any delinquent rent, prorated as of Close Of Escrow.
- B. Government Compliance:** No warranty is made concerning compliance with governmental restrictions, if any, limiting the amount of rent that can lawfully be charged, the maximum number of persons who can lawfully occupy the Property, or the ability of Buyer to remove any Tenant(s) from possession. Buyer is advised to carefully read and consider the attached ☒ Rent Cap and Just Cause Addendum (C.A.R. Form RCJC) which may impact Buyer's and Tenant(s)' rights and obligations under the Law. Buyer is advised that local ordinances may also affect Buyer's and Tenant(s)' rights and obligations.
- C. Proposed Changes:**
 - (1) Seller shall give Buyer written notice of **(i)** any changes to existing leases or tenancies; **(ii)** new agreements to lease or rent; or **(iii)** changes to the status of the condition of the Property ("Proposed Changes") at least **7 (or _____) Days** prior to any Proposed Changes.
 - (2) Buyer shall, within **5 (or _____) Days** after receipt of notice of Proposed Changes, give Seller notice of Buyer's objection to the Proposed Changes in which case Seller shall not make the Proposed Changes.
- D. Personal Property Included in Sale:**
 - (1) A complete list of all personal Property of Seller currently used in the operation of the Property and included in the purchase price shall be delivered to Buyer within the time specified for Delivery of Documents in the Agreement.
 - (2) Seller shall deliver title to the personal property by Bill of Sale, free of all liens and encumbrances, and without warranty of condition.
 - (3) As additional security for any note in favor of Seller for any part of the purchase price, Buyer shall execute a UCC-1 Financing Statement to be filed with the Secretary of State, covering the personal property included in the purchase, replacement thereof and insurance proceeds.
- E. Seller Documentation and Additional Disclosure:** Within the time specified in the Agreement for Seller Delivery of Documents, and subject to Buyer's right of review, Seller shall disclose, make available or Deliver, as applicable, to Buyer, the following:
 - (1) **RENTAL SERVICE AGREEMENTS:** **(i)** All current leases, rental agreements, service contracts, and other agreements pertaining to the operation of the Property; **(ii)** A rental statement including names of Tenant(s), rental rates, period of rental, date of last rent increase, security deposits, rental concessions, rebates or other benefits, if any, and a list of delinquent rents and their duration. Seller represents that the documents to be furnished are those maintained in the ordinary and normal course of business.

Property Address: 433 East Highway 4, Murphys, CA 95247 Date: 06/15/2026

- (2) ☐ **INCOME AND EXPENSE STATEMENTS:** (if checked) The books and records for the Property, if any, including a statement of income and expense for the 12 months preceding Acceptance.
- (3) ☐ **TENANT ESTOPPEL CERTIFICATES:** (if checked) Tenant Estoppel Certificates (C.A.R. Form TEC). Tenant Estoppel Certificates shall be completed by Seller or Seller's agent and delivered to Tenant(s) for Tenant(s) to sign and acknowledge: (i) that Tenant(s)' rental or lease agreements are unmodified and in full force and effect, (or if modified, stating all such modifications); (ii) that no lessor defaults exist; and (iii) stating the amount of any prepaid rent or security deposit. Seller shall exercise good faith to obtain Tenant(s)' signature(s), but Seller cannot guarantee Tenant(s)' cooperation. In the event Seller cannot obtain signed Tenant Estoppel Certificates within the time specified above, Seller shall notify Buyer and provide the unsigned one that was provided to Tenant(s). If, after the time specified for Seller to Deliver the TEC to Buyer, any Tenant(s) sign and return a TEC to Seller, Seller shall Deliver that TEC to Buyer.
- (4) **SURVEY, PLANS, AND ENGINEERING DOCUMENTS:** If in Seller's possession, Copies of surveys, plans, specifications, and engineering documents, if any, prepared on Seller's behalf or in Seller's possession.
- (5) **PERMITS:** If in Seller's possession, Seller shall Deliver to Buyer copies of all permits and approvals, certificates of occupancy, conditional use permits, development plans, and licenses and permits pertaining to the operation of the Property.
- (6) **STRUCTURAL MODIFICATIONS:** Seller shall disclose to Buyer in writing any known structural additions or alterations to, or the installation, alteration, repair, or replacement of, significant components of the structure(s) upon the Property.
- (7) **SECURITY DEPOSITS:** (i) An itemization of all lawful deductions made from Tenant(s) security deposits, if any, and (ii) a statement of the security deposit remaining after any lawful deductions have been made (C.A.R. Sample Letter Change of Ownership and Security Deposit Allocation).

F. SELLER REPRESENTATIONS: Unless otherwise disclosed, under **paragraph 11** of the Agreement or under any disclosure Delivered to Buyer:

- (1) Seller represents that Seller has no actual knowledge that any Tenant(s): (i) has any current pending lawsuit(s), investigation(s), inquiry(ies), action(s), or other proceeding(s) affecting the Property or the right to use and occupy it; (ii) has any unsatisfied mechanics or materialman lien(s) affecting the Property; and (iii) is the subject of a bankruptcy. If Seller receives any such notice, prior to Close Of Escrow, Seller shall immediately notify Buyer.
- (2) Seller represents that no Tenant is entitled to any rebate, concessions, or other benefit, except as set forth in the rental agreements.
- (3) Seller represents that the documents to be furnished are those maintained in the ordinary and normal course of business and the income and expense statements are and used by Seller in the computation of federal and state income tax returns.

By signing below Buyer and Seller acknowledge that each has received a copy of this Tenant Occupied Property Addendum, and each has read, understands, and agrees to its terms.

Buyer	<u>Elizabeth Tara Dawson</u>	<u>Elizabeth Tara Dawson</u>	Date	<u>06/15/2026</u>
Buyer	<u>James R Heryford</u>	<u>James R Heryford</u>	Date	<u>06/19/26</u>
Seller	<u>Yvonne Heryford</u>	<u>Yvonne Heryford</u>	Date	<u>06/19/26</u>



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RENT CAP AND JUST CAUSE ADDENDUM

(Note: State or local laws may limit the availability of certain exemptions. Check with a qualified California real estate attorney before proceeding.)

(C.A.R. Form RCJC, Revised 6/23)

The following terms and conditions are hereby incorporated and made part of the Residential Lease or Month-to-Month Rental Agreement dated _____ on property known as 433 East Highway 4, Murphys, CA 95247 in which James R Heryford, Yvonne Heryford is referred to as "Tenant" and Elizabeth Tara Dawson is referred to as "Housing Provider".

I. RENT CAP AND JUST CAUSE ADDENDUM TERMS

With certain exemptions, Housing Provider may be subject to the rent cap and just cause eviction provisions of the Civil Code. Housing Provider informs Tenant of the following:

California law limits the amount your rent can be increased. See § 1947.12 of the Civil Code for more information. California law also provides that after all Tenants have continuously and lawfully occupied the property for 12 months or more or at least one of the Tenants has continuously occupied the property for 24 months or more, a Housing Provider must provide a statement of cause in any notice to terminate a tenancy. See § 1946.2 of the Civil Code for more information.

II. EXEMPTIONS TO BOTH RENT CAP REQUIREMENTS AND JUST CAUSE EVICTIONS*:

1. Housing that has been issued a certificate of occupancy within the previous 15 years.
2. A property containing two separate dwelling units (excluding ADUs and junior ADUs) within a single structure in which one of the units was Owner occupied at the commencement and throughout the tenancy.
3. **Single Family Residential** property (including a condominium and units in planned developments) that is alienable separate from the title to any other dwelling unit if the notice below is checked and delivered to the Tenant:

☐ **Notice of Exemption:** This property is not subject to the rent limits imposed by § 1947.12 of the Civil Code and is not subject to the just cause requirements of § 1946.2 of the Civil Code. This property meets the requirements of §§ 1947.12 (d)(5) and 1946.2 (e)(8) of the Civil Code AND the Owner is not any of the following: (1) a real estate investment trust, as defined by § 856 of the Internal Revenue Code; (2) a corporation; or (3) a limited liability company in which at least one member is a corporation.

III. ADDITIONAL EXEMPTIONS ONLY APPLICABLE TO JUST CAUSE EVICTIONS*:

1. Housing accommodations in which the Tenant shares bathroom or kitchen facilities with the Owner who maintains their principal residence at the residential real property.
2. Single-family Owner-occupied residences, including a residence in which the Owner-occupant rents or leases no more than two units or bedrooms, including, but not limited to, an accessory dwelling unit.

IV. RENT CAP REQUIREMENTS

1. Subject to certain provisions of Civil Code § 1947.12 subdivision (b), an Owner of real property shall not increase the rental rate for that property more than 5 percent plus the percentage change in the cost of living, or 10 percent, whichever is lower, of the lowest rental amount charged for that property at any time during the 12 months prior to the effective date of the increase.
2. If the same Tenant remains in occupancy over any 12-month period, the gross rental rate shall not be increased in more than two increments over that 12-month period.
3. For a new tenancy in which no Tenant from the prior tenancy remains, the Owner may establish the initial rate not subject to **paragraph 1** of this section. **Paragraph 1** of this section is only applicable to subsequent increases after the initial rental rate has been established.

V. JUST CAUSE REASONS FOR TERMINATION OF TENANCY

1. **"At-Fault" Reasons:**
 - A. Default in payment of rent.
 - B. Breach of a material term of the lease, as described in Code of Civil Procedure § 1161, paragraph (3), including but not limited to, violation of a provision of the lease after being issued a written notice to correct the violation.

- C. Maintaining, committing, or permitting the maintenance of a nuisance as described in Code of Civil Procedure § 1161, paragraph (4).
- D. Committing waste as described in Code of Civil Procedure § 1161, paragraph (4).
- E. The Tenant had a written lease that terminated on or after January 1, 2020, and after a written request or demand from the Owner, the Tenant refused to execute a written extension or renewal of the lease for an additional term of similar duration with similar provisions, provided that those terms do not violate § 1946.1 or any other provision of law.
- F. Criminal activity by the Tenant on the residential real property, including any common areas, or any criminal threat, as defined in Penal Code § 422, subdivision (a), directed to any Owner or agent of the Owner of the premises.
- G. Assigning or subletting the premises in violation of the Tenant's lease.
- H. The Tenant's refusal to allow the Owner to enter the residential real property pursuant to a request consistent with Civil Code §§ 1101.5 and 1954, and Health and Safety Code §§ 13113.7 and 17926.1.
- I. Using the premises for an unlawful purpose as described in Code of Civil Procedure § 1161, paragraph (4).
- J. When the Tenant fails to deliver possession of the residential real property after providing the Owner written notice of Tenant's intention to terminate the hiring of real property or makes a written offer to surrender that is accepted in writing by the Housing Provider, but fails to deliver possession at the time specified in that written notice.

2. "No-fault" Reasons:

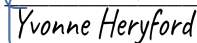
- A. Intent to occupy the residential real property by the Owner or their spouse, domestic partner, children, grandchildren, parents or grandparents (Owner/family move-in). Tenant and Owner hereby agree that the Owner shall have the right to terminate the lease if the Owner, or their spouse, domestic partner, children, grandchildren, parents or grandparents, unilaterally decide to occupy the residential property. Owner may terminate the lease at the end of a fixed term or any time during a month to month tenancy by giving the appropriate notice.
- B. Withdrawal of the Premises from the rental market. Owner may terminate the lease at the end of a fixed term or any time during a month to month tenancy by giving the appropriate notice.
- C. Unsafe habitation, as determined by a government agency that has issued an order to vacate, or to comply, or other order that necessitates vacating the residential property.
- D. Intent to demolish or substantially remodel the residential real property. "Substantially remodel" means the replacement or substantial modification of any structural, electrical, plumbing, or mechanical system that requires a permit that cannot be accomplished in a safe manner with the Tenant in place, and that requires Tenant to vacate the residential real property for at least 30 days. Cosmetic improvements alone do not qualify.

3. Just Cause Notices:

- A. **Curable "At-Fault" Reasons:** Before the Owner can terminate the tenancy for an At-Fault Just Cause violation that is curable, the Owner must first provide notice to cure giving the Tenant an opportunity to cure the violation pursuant to Code of Civil Procedure § 1161, paragraph (3).
- B. **Tenant Payments Pursuant to "No-Fault" Eviction: (1)** If Owner issues a termination of tenancy under a No-Fault Just Cause, Owner notifies Tenant of the right to direct payment relocation assistance equal to one month of the Tenant's rent in effect at the time of the termination and shall be provided within 15 calendar days of service of the notice. **(2)** In lieu of direct payment, Owner may waive the payment of rent for the final month of tenancy prior to the rent becoming due. The notice shall state the amount of rent waived and that no rent is due for the final month of tenancy.

***NOTE: Other exemptions under the Civil Code may apply. Additionally, this property may be subject to local rent cap and just cause eviction controls, which may impose additional restrictions. Housing Provider is strongly advised to seek counsel from a qualified California real estate attorney, who is familiar with the law where the property is located, prior to serving any notice.**

The undersigned acknowledge a copy of this document and agree that the terms specified in Sections I, II(3), if checked, and V(3) are made a part of the lease or rental agreement specified above.

Tenant (signature)		<u>James R Heryford</u>	Date	<u>06/19/26</u>
Tenant (signature)		<u>Yvonne Heryford</u>	Date	<u>06/19/26</u>
Housing Provider (signature)	<u>Elizabeth Tara Dawson</u>	<u>Elizabeth Tara Dawson</u>	Date	<u>06/15/2026</u>
Housing Provider (signature)			Date	

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